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DEED OF RELINQUISHMENT
(By way of Family Settlement / Family Arrangement)

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This DEED OF RELINQUISHMENT ("Deed") is executed at New Delhi on this 10th day of January, 2024.

BETWEEN:

MR. VIKRAM SINGH CHAUHAN, Son of Late Shri Harbhajan Singh Chauhan, aged about 52 years, an Indian citizen, Hindu by religion, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, PAN: BKCP8834M, Aadhaar No. XXXX-XXXX-3361 (hereinafter referred to as the "RELEASOR", which expression shall, unless repugnant to the context or meaning thereof, mean and include his heirs, legal representatives, executors, administrators, successors and assigns) of the FIRST PART;

AND

MRS. PRIYA VIKRAM CHAUHAN, Wife of Mr. Vikram Singh Chauhan, aged about 47 years, an Indian citizen, Hindu by religion, residing at Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, PAN: CJKPC2294L, Aadhaar No. XXXX-XXXX-6738 (hereinafter referred to as the "RELEASEE", which expression shall, unless repugnant to the context or meaning thereof, mean and include her heirs, legal representatives, executors, administrators, successors and assigns) of the SECOND PART.

The Releasor and the Releasee are hereinafter individually referred to as "Party" and collectively referred to as "Parties".

RECITALS

WHEREAS the Releasor and the Releasee are husband and wife, both professing the Hindu religion, and are governed by the provisions of the Hindu Succession Act, 1956, the Hindu Marriage Act, 1955, and the Hindu Minority and Guardianship Act, 1956, as applicable;

AND WHEREAS the property more fully described in the Schedule hereunder, being Flat No. 8, situated on the Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, admeasuring approximately 1200 sq.ft. (super built-up area), was originally acquired by Late Shri Harbhajan Singh Chauhan, Father of the Releasor, by virtue of an allotment from the Delhi Development Authority / original builder-developer, details of which are on record with the concerned authorities;

AND WHEREAS Late Shri Harbhajan Singh Chauhan, during his lifetime, executed a registered Gift Deed bearing Document No. 2891/2015 dated 15th September 2015, registered at the Office of the Sub-Registrar, SRO V-A (Hauz Khas), New Delhi, whereby he gifted and transferred the said Flat No. 8 to Mrs. Priya Vikram Chauhan (the Releasee herein) absolutely and irrevocably, and the said Gift Deed was duly accepted by the Releasee and possession was delivered to her;

AND WHEREAS Late Shri Harbhajan Singh Chauhan passed away on the 22nd day of March, 2023, leaving behind his son, Mr. Vikram Singh Chauhan (Releasor herein), and the Releasee, as his surviving family members;

AND WHEREAS upon the demise of Late Shri Harbhajan Singh Chauhan, certain questions arose within the family regarding whether the Releasor, being the natural son and a Class I legal heir under Section 8 of the Hindu Succession Act, 1956, read with the Schedule thereto, may have any residual, reversionary, or contingent right, title, or interest in the said property notwithstanding the prior Gift Deed in favour of the Releasee;

AND WHEREAS the Parties, after due deliberation and with the assistance and counsel of elders of the family and independent legal advice, have arrived at a bona fide family settlement and arrangement, whereby the Releasor has agreed to release, relinquish, and forever give up any and all rights, title, interest, claim, or demand, whether present, future, contingent, residual, reversionary, or otherwise, that he may have in or over the said property in favour of the Releasee, so as to confirm and perfect the Releasee's absolute ownership;

AND WHEREAS this Deed of Relinquishment is being executed pursuant to the said family settlement and arrangement and is without any monetary consideration, the same being an act of love, affection, and familial harmony;

AND WHEREAS this Deed is executed on non-judicial stamp paper of the appropriate value as prescribed under the Indian Stamp Act, 1899, and the Delhi Stamp (Prevention of Under-Valuation of Instruments) Rules, 2007, as applicable;

AND WHEREAS this family arrangement and settlement is recognised and upheld under Indian law, as reiterated by the Hon'ble Supreme Court of India in *Kale & Ors. v. Deputy Director of Consolidation & Ors.*, AIR 1976 SC 807, and other judicial pronouncements, and does not require consideration to be valid.

NOW THIS DEED OF RELINQUISHMENT WITNESSETH AS FOLLOWS:

1. In pursuance of the aforesaid family settlement and arrangement, and in consideration of the natural love and affection that the Releasor bears towards the Releasee and for the purpose of maintaining peace, harmony, and goodwill within the family, the Releasor hereby voluntarily, unconditionally, and irrevocably RELEASES, RELINQUISHES, RENOUNCES, ABANDONS, AND GIVES UP all his right, title, interest, claim, and demand, whether legal, equitable, actual, contingent, residual, reversionary, expectant, or of any nature whatsoever, in and over the property described in the Schedule hereunder, being Flat No. 8, Fourth Floor, Plot No. 1A, Hauz Khas Enclave, New Delhi – 110016, IN FAVOUR OF the Releasee, Mrs. Priya Vikram Chauhan, her heirs, successors, and assigns, absolutely and forever.
2. The Releasor hereby declares and confirms that the Releasee, Mrs. Priya Vikram Chauhan, is and shall henceforth be the sole, absolute, and undisputed owner of the said property, with full right to hold, possess, enjoy, sell, mortgage, lease, gift, transfer, or otherwise deal with the same in any manner she deems fit, without any interference, obstruction, or

objection from the Releasor or anyone claiming through or under him.

3. The Releasor declares that he has not created or permitted to be created any encumbrance, charge, lien, mortgage, or third-party right of any nature whatsoever over the said property, and the property is free from all encumbrances, attachments, and claims of whatsoever nature.
4. The Releasor hereby covenants and warrants as follows:
 - (a) That the Releasor has the legal competency and authority to execute this Deed and to release and relinquish his rights in the manner set out herein;
 - (b) That the Releasor has executed this Deed out of his own free will, with full knowledge and understanding of the nature and consequences of this relinquishment, and without any coercion, undue influence, fraud, misrepresentation, or compulsion from any quarter;
 - (c) That the Releasor shall not at any time hereafter make any claim, raise any objection, or institute any suit, proceeding, or action in any court, tribunal, or authority against the Releasee or her successors in respect of the said property;
 - (d) That the Releasor shall, at his own cost and at the request of the Releasee, execute and register all further deeds, documents, and instruments as may be necessary or expedient to give full effect to this Deed and to perfect the title of the Releasee;
 - (e) That in the event any person claiming through or under the Releasor challenges or disputes the right, title, or ownership of the Releasee in respect of the said property, the Releasor shall defend, indemnify, and hold harmless the Releasee against all claims, costs, damages, and expenses arising therefrom.
5. The Releasee hereby accepts this relinquishment and acknowledges the same.
6. The Parties declare that this Deed is executed without any monetary consideration and is a bona fide family arrangement. Stamp duty has been paid in accordance with Article 55 of Schedule I-A to the Indian Stamp Act, 1899, as applicable in the National Capital Territory of Delhi.
7. This Deed shall be binding upon the heirs, executors, administrators, legal representatives, successors, and assigns of both Parties.
8. This Deed shall be governed by the laws of India, and the courts at New Delhi shall have exclusive jurisdiction.
9. The Releasor confirms that he has received independent legal advice prior to the execution of this Deed and has fully understood the legal implications of the relinquishment effected hereby.

SCHEDULE OF PROPERTY

All that residential flat being Flat No. 8, situated on the Fourth Floor of the building standing on Plot No. 1A, Hauz Khas Enclave, within the limits of the New Delhi Municipal Council (NDMC) / South Delhi Municipal Corporation, falling in the Revenue Estate of Village Hauz Khas, Tehsil Hauz Khas, District South Delhi, New Delhi – 110016, admeasuring approximately 1200 sq.ft. (One Thousand Two Hundred Square Feet) (super built-up area), and more particularly described as under:

BOUNDED AS FOLLOWS:

On the East : By common passage / staircase of the building
On the West : By outer wall abutting neighbouring plot
On the North : By flat belonging to another owner on the same floor
On the South : By outer wall facing the main road of Hauz Khas Enclave
On the Top : By Fifth Floor slab / terrace above
On the Bottom : By Third Floor flat slab below

Together with the proportionate undivided share in the land underneath the building, common areas, staircase, lifts, and open spaces as per the applicable share, and together with the right to one covered car parking space in the basement / stilt area of the building.

IN WITNESS WHEREOF, the Parties hereto have set and subscribed their respective hands and signatures on this 10th day of January, 2024, at New Delhi, in the presence of the witnesses mentioned hereunder.

RELEASOR:

RELEASEE:

Mr. Vikram Singh Chauhan
(FIRST PARTY)

Mrs. Priya Vikram Chauhan
(SECOND PARTY)

WITNESSES:

1. Name : Shri Rajendra Prasad Tiwari
S/o : Late Shri Mohan Lal Tiwari
Address: C-42, Green Park Extension, New Delhi – 110016
Signature: _____
2. Name : Smt. Kavita Sharma
D/o : Shri Narayan Das Sharma
Address: 29, Sarvapriya Vihar, New Delhi – 110016
Signature: _____

REGISTRATION ENDORSEMENT

Registered at the Office of the Sub-Registrar, SRO II-B (Janakpuri), New Delhi, on this 15th day of January, 2024.

Document No. : 891 of 2024
Book No. : I (Book 1)
Volume No. : _____
Pages : _____ to _____
Filed on : 15th January 2024
Registration Fee Paid : Rs. _____
Stamp Duty Paid : Rs. _____

Presented for registration by Mr. Vikram Singh Chauhan (Releasor, First Party) and Mrs. Priya Vikram Chauhan (Releasee, Second Party), identified by Shri Narendra Kumar Gupta, Advocate, enrolled with the Bar Council of Delhi (Enrolment No. D/2487/2004), having office at Chamber No. 318, Lawyers' Block, Saket District Courts Complex, New Delhi – 110017.

Both Parties appeared before the undersigned and admitted execution of the foregoing instrument. Their identities were duly verified through production of original Aadhaar cards and PAN cards. The contents of the instrument were explained to both Parties in Hindi, and both confirmed their understanding and voluntary execution.

Sub-Registrar
SRO II-B (Janakpuri), New Delhi
(Seal & Signature)

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END OF DEED OF RELINQUISHMENT

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